

- (a) providing all such information and assistance as **We** may require;
- (b) allowing **Us** the right to examine the nature and extent of all damage to the **Insured Vehicle** before it is repaired. **We** have this right whether or not **You** or **Your Authorised Driver** is entitled or intends to claim an indemnity under this Policy for the damage to the **Insured Vehicle**.

In case damage to the **Insured Vehicle** is indemnifiable by this Policy, **You** shall decide whether or not to claim for such damage under this Policy and if so claiming, shall submit such a claim to **Us** within fourteen (14) days of occurrence or discovery of damage. The quoted cost of repair is subject to adjustment by **Us** before any repair may commence if it exceeds the Authorised Repair Limit in total.

### 3. Other Insurance

If at the time any claim arises under this Policy there is any other insurance covering the same loss, damage or liability, **We** shall not be liable to pay or contribute more than **Our** rateable proportion of any loss, damage, compensation, costs or expenses. Provided always that nothing in this Condition shall impose on **Us** any liability from which but for this Condition it would have been relieved under Proviso (i) to Section II - 2 of this Policy.

### 4. Arbitration

If there is any disagreement on the amount to be paid under this Policy (liability being otherwise admitted) such difference shall be referred to an arbitrator to be appointed in writing. If **You** and **We** cannot agree on a single arbitrator, we should each appoint an arbitrator within one (1) calendar month after having been required in writing by the other. If the two (2) arbitrators do not agree, an umpire shall be appointed in writing by the arbitrators. The umpire shall sit with the arbitrators and preside at their meetings and the making of an award shall be a condition precedent to any right of action against **Us**.

If **We** shall offer an amount in settlement or disclaim liability for any claim hereunder and such claim shall not within twelve (12) calendar months from the date of such disclaimer have been referred to arbitration under the provisions contained in the Policy or been made subject to pending court action then the claim shall for all purposes be deemed to have been abandoned and shall not thereafter be recoverable hereunder.

### 5. Conditions Precedent to the Company's Liability

The due observance and fulfilment of the Terms of this Policy insofar as they relate to anything to be done or not to be done by **You** or any person claiming to be indemnified, and the truth of the statements and answers in the application, shall be conditions precedent to any liability of **Us** to make any payment under this Policy.

### 6. Legal Representative

The Terms of this Policy, so far as applicable and with any necessary modifications, shall apply to the legal personal representative of the **Policyholder** and **Authorised Driver**.

## GENERAL EXCLUSIONS

(Applicable to the whole Policy)

**We** shall not be liable in respect of:

1. Any accident, loss, damage or liability caused sustained or incurred:
  - (a) outside the **Geographical Area**
  - (b) whilst any **Insured Vehicle** in respect of which indemnity is provided by this Policy is:
    - (i) being used otherwise than in accordance with the **Limitations as to Use**,
    - (ii) being driven by or is for the purpose of being driven by him in the charge of any person other than an **Authorised Driver**,
    - (iii) being driven by the **Policyholder** or by any person on the order of or with the permission of the **Policyholder** whilst under the influence of intoxicating liquor or drugs,
    - (iv) being used or driven when it is not registered or licensed under the legislation or when the registration or licensing under the legislation has been cancelled,
    - (v) being used or driven with modifications that have not been approved by the Registrar of Vehicles in accordance with the Road Traffic (Motor Vehicles, Registration and Licensing) Rules or by any relevant regulatory authority.
2. Any liability which attaches by virtue of an agreement but which would not have attached in the absence of such agreement.
3. Any loss, damage, liability or expense directly or indirectly caused by or contributed to by or arising from:
  - (a) ionising radiations from or contamination by radioactivity from any nuclear fuel or from any nuclear waste or from the combustion of nuclear fuel

- (b) the radioactive, toxic, explosive or other hazardous or contaminating properties of any nuclear installation, reactor or other nuclear assembly or nuclear components thereof
- (c) any weapon or device employing atomic or nuclear fission and/or fusion or other like reaction or radioactive force or matter
- (d) the radioactive, toxic, explosive or other hazardous or contaminating properties of any radioactive matter. The exclusion in this sub-clause does not extend to radioactive isotopes, other than nuclear fuel, when such isotopes are being prepared, carried, stored, or used for commercial, agricultural, medical, scientific or other similar peaceful purposes
- (e) any chemical, biological, bio-chemical or electromagnetic weapon.

4. Any loss or damage occasioned directly or indirectly by or through or in consequence of any of the following occurrences namely:

- (a) permanent or temporary dispossession resulting from confiscation nationalisation commandeering or requisition by any lawfully constituted authority
- (b) permanent or temporary dispossession of **Insured Vehicle** resulting from the unlawful occupation of such **Insured Vehicle** by any person

provided that **We** are not relieved of any liability to the **Policyholder** in respect of physical damage to the **Insured Vehicle** occurring before dispossession or during temporary dispossession which is otherwise covered by this Policy

- (c) the destruction of **Insured Vehicle** by order of any public authority

In any action suit or other proceeding where **We** allege that by reason of the provisions above any loss destruction or damage is not covered by this insurance the burden of proving that such loss destruction or damage is covered shall be upon the **Policyholder**.

5. Any death, disability, loss, damage, destruction, legal liabilities, cost or expense including consequential loss of whatsoever nature, directly or indirectly caused by, resulting from or in connection with any of the following regardless of any other cause or event contributing concurrently or in any other sequence to the loss:

- (a) war, invasion, acts of foreign enemies, hostilities or warlike operations (whether war be declared or not), civil war, rebellion, revolution, insurrection, civil commotion assuming the proportions of or amounting to an uprising, military or usurped power; or
- (b) any act of terrorism including but not limited to
  - (i) the use or threat of force, violence and/or,
  - (ii) harm or damage to life or to property (or the threat of such harm or damage) including, but not limited to, nuclear radiation and/or contamination by chemical and/or biological agents,

by any person(s) or group(s) of persons, committed for political, religious, ideological or similar purposes, express or otherwise, and/or to put the public or any section of the public in fear; or

- (c) any action taken in controlling, preventing, suppressing or in any way relating to (a) or (b) above.

If **We** allege that by reason of this Exclusion, any loss, damage, cost or expense is not covered by this insurance the burden of proving the contrary shall be upon the **Policyholder** or **Authorised Driver**.

6. Any accident loss, damage or liability directly or indirectly, proximately or remotely occasioned by, contributed to by or traceable to or arising out of or in connection with strike or riot and in the event of any claim hereunder the person claiming to be indemnified shall prove that the accident, loss, damage or liability arose independently of and was in no way connected with or occasioned by or contributed to by or traceable to any of the said occurrences or any consequence thereof and in default of such proof **We** shall not be liable to make any payment in respect of such a claim.
7. Any claim or provide any benefit hereunder to the extent that the provision of such cover, payment of such claim or provision of such benefit would expose **Us** to any sanction, prohibition or restriction under United Nations resolutions or the trade or economic sanctions, laws or regulations of the European Union or United Kingdom or United States of America.

## SECTION I - INSURANCE ON THE INSURED VEHICLE

### COVER

#### 1. Loss or Damage

**We** will indemnify the **Policyholder** against accidental loss of or damage to the **Insured Vehicle** and its accessories and spare parts whilst thereon arising anywhere within the **Geographical Area**.